



January 22, 2026

ENGROSSED

SENATE BILL No. 212

DIGEST OF SB 212 (Updated January 21, 2026 2:01 pm - DI 140)

Citations Affected: IC 6-3.

Synopsis: State income tax conformity. Amends the definition of "Internal Revenue Code" to conform with certain provisions enacted in Public Law 119-21 (H.R. 1) (commonly known as the One Big Beautiful Bill Act of 2025).

Effective: January 1, 2025 (retroactive).

Holdman, Baldwin, Rogers

(HOUSE SPONSORS — THOMPSON, SNOW)

January 6, 2026, read first time and referred to Committee on Tax and Fiscal Policy.
January 12, 2026, reported favorably — Do Pass.
January 13, 2026, read second time, ordered engrossed. Engrossed.
January 15, 2026, read third time, passed. Yeas 48, nays 0.

HOUSE ACTION

January 20, 2026, read first time and referred to Committee on Ways and Means.
January 22, 2026, reported — Do Pass.

ES 212—LS 7071/DI 120



January 22, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED SENATE BILL No. 212

A BILL FOR AN ACT to amend the Indiana Code concerning
taxation.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 6-3-1-11, AS AMENDED BY P.L.194-2023,
2 SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JANUARY 1, 2025 (RETROACTIVE)]: Sec. 11. (a) **Except as**
4 **provided in subsection (e)**, the term "Internal Revenue Code" means
5 the Internal Revenue Code of 1986 of the United States as amended
6 and in effect on January 1, 2023.
7 (b) Whenever the Internal Revenue Code is mentioned in this
8 article, or in another provision of the Indiana Code that cites the
9 definition of "Internal Revenue Code" provided in this section, the
10 particular provisions that are referred to, together with all the other
11 provisions of the Internal Revenue Code in effect on January 1, 2023,
12 that pertain to the provisions specifically mentioned, shall be regarded
13 as incorporated in this article by reference and have the same force and
14 effect as though fully set forth in this article. To the extent that a
15 federal statute in the United States Code is enacted or amended in a
16 title other than the Internal Revenue Code on or before January 1,
17 2023, and affects federal adjusted gross income, federal taxable

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income, federal tax credits, or other federal tax attributes, the federal statute shall be considered to be part of the Internal Revenue Code as amended and in effect on January 1, 2023. To the extent:

(1) the provisions of the Internal Revenue Code apply to this article, regulations adopted under Section 7805(a) of the Internal Revenue Code, and in effect on January 1, 2023; and

(2) a federal statute in the United States Code that is enacted or amended in a title other than the Internal Revenue Code on or before January 1, 2023, and affects federal adjusted gross income, federal taxable income, federal tax credits, or other federal tax attributes applies to this article, regulations adopted under the federal statute of the United States Code and in effect on January 1, 2023;

shall be regarded as rules adopted by the department under this article, unless the department adopts specific rules that supersede the regulation.

(c) An amendment to the Internal Revenue Code made by an act passed by Congress before January 1, 2023, other than the federal 21st Century Cures Act (P.L. 114-255) and the federal Disaster Tax Relief and Airport and Airway Extension Act of 2017 (P.L. 115-63), that is effective for any taxable year that began before January 1, 2023, and that affects:

(1) individual adjusted gross income (as defined in Section 62 of the Internal Revenue Code);

(2) corporate taxable income (as defined in Section 63 of the Internal Revenue Code);

(3) trust and estate taxable income (as defined in Section 641(b) of the Internal Revenue Code);

(4) life insurance company taxable income (as defined in Section 801(b) of the Internal Revenue Code);

(5) mutual insurance company taxable income (as defined in Section 821(b) of the Internal Revenue Code); or

(6) taxable income (as defined in Section 832 of the Internal Revenue Code);

is also effective for that same taxable year for purposes of determining adjusted gross income under section 3.5 of this chapter and IC 6-5.5-1-2.

(d) This subsection applies to a taxable year ending before January 1, 2013. The following provisions of the Internal Revenue Code that were amended by the Tax Relief Act, Unemployment Insurance Reauthorization, and Job Creation Act of 2010 (P.L. 111-312) are treated as though they were not amended by the Tax Relief Act,



Unemployment Insurance Reauthorization, and Job Creation Act of 2010 (P.L. 111-312):

(1) Section 1367(a)(2) of the Internal Revenue Code pertaining to an adjustment of basis of the stock of shareholders.

(2) Section 871(k)(1)(C) and 871(k)(2)(C) of the Internal Revenue Code pertaining to the treatment of certain dividends of regulated investment companies.

(3) Section 897(h)(4)(A)(ii) of the Internal Revenue Code pertaining to regulated investment companies qualified entity treatment.

(4) Section 512(b)(13)(E)(iv) of the Internal Revenue Code pertaining to the modification of tax treatment of certain payments to controlling exempt organizations.

(5) Section 613A(c)(6)(H)(ii) of the Internal Revenue Code pertaining to the limitations on percentage depletion in the case of oil and gas wells.

(6) Section 451(i)(3) of the Internal Revenue Code pertaining to special rule for sales or dispositions to implement Federal Energy Regulatory Commission or state electric restructuring policy for qualified electric utilities.

(7) Section 954(c)(6) of the Internal Revenue Code pertaining to the look-through treatment of payments between related controlled foreign corporation under foreign personal holding company rules.

The department shall develop forms and adopt any necessary rules under IC 4-22-2 to implement this subsection.

(e) Solely for purposes of the provisions specified in subsection (f), the term "Internal Revenue Code" shall mean the Internal Revenue Code as in effect on July 4, 2025, and any reference to January 1, 2023, in this section shall be applied as if the reference is to July 4, 2025.

(f) The provisions to which subsection (e) is to be applied are as follows:

(1) Section 23 of the Internal Revenue Code.

(2) Section 168(e)(3)(B)(vi) of the Internal Revenue Code.

(3) Section 223(c)(2)(E) of the Internal Revenue Code.

SECTION 2. An emergency is declared for this act.



COMMITTEE REPORT

Mr. President: The Senate Committee on Tax and Fiscal Policy, to which was referred Senate Bill No. 212, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill DO PASS.

(Reference is to SB 212 as introduced.)

HOLDMAN, Chairperson

Committee Vote: Yeas 11, Nays 2

COMMITTEE REPORT

Mr. Speaker: Your Committee on Ways and Means, to which was referred Senate Bill 212, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill do pass.

(Reference is to SB 212 as printed January 12, 2026.)

THOMPSON

Committee Vote: Yeas 20, Nays 3

